**§ 601. Imposition of tax.** (a) Resident married individuals filing joint returns and resident surviving spouses. There is hereby imposed for each taxable year on the New York taxable income of every resident married individual who makes a single return jointly with his spouse under subsection (b) of section six hundred fifty-one and on the New York taxable income of every resident surviving spouse a tax determined in accordance with the following tables:

(1) (A) For taxable years beginning after two thousand eleven and before two thousand eighteen:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $16,000 | 4% of taxable income |
| Over $16,000 but not over $22,000 | $640 plus 4.5% of excess over $16,000 |
| Over $22,000 but not over $26,000 | $910 plus 5.25% of excess over $22,000 |
| Over $26,000 but not over $40,000 | $1,120 plus 5.90% of excess over $26,000 |
| Over $40,000 but not over $150,000 | $1,946 plus 6.45% of excess over $40,000 |
| Over $150,000 but not over $300,000 | $9,041 plus 6.65% of excess over $150,000 |
| Over $300,000 but not over $2,000,000 | $19,016 plus 6.85% of excess over $300,000 |
| Over $2,000,000 | $135,466 plus 8.82% of excess over $2,000,000 |

(B)(i) For taxable years beginning in two thousand eighteen the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $17,150 | 4% of the New York taxable income |
| Over $17,150 but not over $23,600 | $686 plus 4.5% of excess over $17,150 |
| Over $23,600 but not over $27,900 | $976 plus 5.25% of excess over $23,600 |
| Over $27,900 but not over $43,000 | $1,202 plus 5.9% of excess over $27,900 |
| Over $43,000 but not over $161,550 | $2,093 plus 6.33% of excess over |

| | |
|---|---|
| | $43,000 |
| Over $161,550 but not over $323,200 | $9,597 plus 6.57% of excess over $161,550 |
| Over $323,200 but not over $2,155,350 | $20,218 plus 6.85% of excess over $323,200 |
| Over $2,155,350 | $145,720 plus 8.82% of excess over $2,155,350 |

(ii) For taxable years beginning in two thousand nineteen the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $17,150 | 4% of the New York taxable income |
| Over $17,150 but not over $23,600 | $686 plus 4.5% of excess over $17,150 |
| Over $23,600 but not over $27,900 | $976 plus 5.25% of excess over $23,600 |
| Over $27,900 but not over $43,000 | $1,202 plus 5.9% of excess over $27,900 |
| Over $43,000 but not over $161,550 | $2,093 plus 6.21% of excess over $43,000 |
| Over $161,550 but not over $323,200 | $9,455 plus 6.49% of excess over $161,550 |
| Over $323,200 but not over $2,155,350 | $19,946 plus 6.85% of excess over $323,200 |
| Over $2,155,350 | $145,448 plus 8.82% of excess over $2,155,350 |

(iii) For taxable years beginning in two thousand twenty the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $17,150 | 4% of the New York taxable income |
| Over $17,150 but not over $23,600 | $686 plus 4.5% of excess over $17,150 |
| Over $23,600 but not over $27,900 | $976 plus 5.25% of excess over $23,600 |
| Over $27,900 but not over $43,000 | $1,202 plus 5.9% of excess over $27,900 |
| Over $43,000 but not over $161,550 | $2,093 plus 6.09% of excess over |

| | |
|---|---|
| | $43,000 |
| Over $161,550 but not over $323,200 | $9,313 plus 6.41% of excess over $161,550 |
| Over $323,200 but not over $2,155,350 | $19,674 plus 6.85% of excess $323,200 over |
| Over $2,155,350 | $145,177 plus 8.82% of excess over $2,155,350 |

(iv) For taxable years beginning in two thousand twenty-one the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $17,150 | 4% of the New York taxable income |
| Over $17,150 but not over $23,600 | $686 plus 4.5% of excess over $17,150 |
| Over $23,600 but not over $27,900 | $976 plus 5.25% of excess over $23,600 |
| Over $27,900 but not over $43,000 | $1,202 plus 5.9% of excess over $27,900 |
| Over $43,000 but not over $161,550 | $2,093 plus 5.97% of excess over $43,000 |
| Over $161,550 but not over $323,200 | $9,170 plus 6.33% of excess over $161,550 |
| Over $323,200 but not over $2,155,350 | $19,403 plus 6.85% of excess over $323,200 |
| Over $2,155,350 but not over $5,000,000 | $144,905 plus 9.65% of excess over $2,155,350 |
| Over $5,000,000 but not over $25,000,000 | $419,414 plus 10.30% of excess over $5,000,000 |
| Over $25,000,000 | $2,479,414 plus 10.90% of excess over $25,000,000 |

(v) For taxable years beginning in two thousand twenty-two the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $17,150 | 4% of the New York taxable income |
| Over $17,150 but not over $23,600 | $686 plus 4.5% of excess over $17,150 |
| Over $23,600 but not over $27,900 | $976 plus 5.25% of excess over $23,600 |

| | |
|---|---|
| Over $27,900 but not over $161,550 | $1,202 plus 5.85% of excess over $27,900 |
| Over $161,550 but not over $323,200 | $9,021 plus 6.25% of excess over $161,550 |
| Over $323,200 but not over $2,155,350 | $19,124 plus 6.85% of excess over $323,200 |
| Over $2,155,350 but not over $5,000,000 | $144,626 plus 9.65% of excess over $2,155,350 |
| Over $5,000,000 but not over $25,000,000 | $419,135 plus 10.30% of excess over $5,000,000 |
| Over $25,000,000 | $2,479,135 plus 10.90% of excess over $25,000,000 |

(vi) For taxable years beginning in two thousand twenty-three and before two thousand twenty-six the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $17,150 | 4% of the New York taxable income |
| Over $17,150 but not over $23,600 | $686 plus 4.5% of excess over $17,150 |
| Over $23,600 but not over $27,900 | $976 plus 5.25% of excess over $23,600 |
| Over $27,900 but not over $161,550 | $1,202 plus 5.5% of excess over $27,900 |
| Over $161,550 but not over $323,200 | $8,553 plus 6.00% of excess over $161,550 |
| Over $323,200 but not over $2,155,350 | $18,252 plus 6.85% of excess over $323,200 |
| Over $2,155,350 but not over $5,000,000 | $143,754 plus 9.65% of excess over $2,155,350 |
| Over $5,000,000 but not over $25,000,000 | $418,263 plus 10.30% of excess over $5,000,000 |
| Over $25,000,000 | $2,478,263 plus 10.90% of excess over $25,000,000 |

(vii) For taxable years beginning after two thousand twenty-five and before two thousand twenty-seven the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $17,150 | 3.90% of the New York taxable income |

| | |
|---|---|
| Over $17,150 but not over $23,600 | $669 plus 4.40% of excess over $17,150 |
| Over $23,600 but not over $27,900 | $953 plus 5.15% of excess over $23,600 |
| Over $27,900 but not over $161,550 | $1,174 plus 5.40% of excess over $27,900 |
| Over $161,550 but not over $323,200 | $8,391 plus 5.90% of excess over $161,550 |
| Over $323,200 but not over $2,155,350 | $17,928 plus 6.85% of excess over $323,200 |
| Over $2,155,350 but not over $5,000,000 | $143,430 plus 9.65% of excess over $2,155,350 |
| Over $5,000,000 but not over $25,000,000 | $417,939 plus 10.30% of excess over $5,000,000 |
| Over $25,000,000 | $2,477,939 plus 10.90% of excess over $25,000,000 |

(viii) For taxable years beginning after two thousand twenty-six and before two thousand thirty-three the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $17,150 | 3.80% of the New York taxable income |
| Over $17,150 but not over $23,600 | $652 plus 4.30% of excess over $17,150 |
| Over $23,600 but not over $27,900 | $929 plus 5.05% of excess over $23,600 |
| Over $27,900 but not over $161,550 | $1,146 plus 5.30% of excess over $27,900 |
| Over $161,550 but not over $323,200 | $8,229 plus 5.80% of excess over $161,550 |
| Over $323,200 but not over $2,155,350 | $17,605 plus 6.85% of excess over $323,200 |
| Over $2,155,350 but not over $5,000,000 | $143,107 plus 9.65% of excess over $2,155,350 |
| Over $5,000,000 but not over $25,000,000 | $417,616 plus 10.30% of excess over $5,000,000 |
| Over $25,000,000 | $2,477,616 plus 10.90% of excess over $25,000,000 |

(ix) For taxable years beginning after two thousand thirty-two the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $17,150 | 3.80% of the New York taxable income |
| Over $17,150 but not over $23,600 | $652 plus 4.30% of excess over $17,150 |
| Over $23,600 but not over $27,900 | $929 plus 5.05% of excess over $23,600 |
| Over $27,900 but not over $161,550 | $1,146 plus 5.30% of excess over $27,900 |
| Over $161,550 but not over $323,200 | $8,229 plus 5.80% of excess over $161,550 |
| Over $323,200 but not over $2,155,350 | $17,605 plus 6.85% of excess over $323,200 |
| Over $2,155,350 | $143,107 plus 8.82% of excess over $2,155,350 |

(1-a) For taxable years beginning after two thousand eight and before two thousand twelve:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $16,000 | 4% of the New York taxable income |
| Over $16,000 but not over $22,000 | $640 plus 4.5% of excess over $16,000 |
| Over $22,000 but not over $26,000 | $910 plus 5.25% of excess over $22,000 |
| Over $26,000 but not over $40,000 | $1,120 plus 5.9% of excess over $26,000 |
| Over $40,000 but not over $300,000 | $1,946 plus 6.85% of excess over $40,000 |
| Over $300,000 but not over $500,000 | $19,756 plus 7.85% of excess over $300,000 |
| Over $500,000 | $35,456 plus 8.97% of excess over $500,000 |

(2) For taxable years beginning after two thousand five and before two thousand nine:

| If the New York taxable income is: | The tax is: |
|---|---|

| | |
|---|---|
| Not over $16,000 | 4% of the New York taxable income |
| Over $16,000 but not over $22,000 | $640 plus 4.5% of excess over $16,000 |
| Over $22,000 but not over $26,000 | $910 plus 5.25% of excess over $22,000 |
| Over $26,000 but not over $40,000 | $1,120 plus 5.9% of excess over $26,000 |
| Over $40,000 | $1,946 plus 6.85% of excess over $40,000 |

(3) For taxable years beginning in two thousand five:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $16,000 | 4% of the New York taxable income |
| Over $16,000 but not over $22,000 | $640 plus 4.5% of excess over $16,000 |
| Over $22,000 but not over $26,000 | $910 plus 5.25% of excess over $22,000 |
| Over $26,000 but not over $40,000 | $1,120 plus 5.9% of excess over $26,000 |
| Over $40,000 but not over $150,000 | $1,946 plus 6.85% of excess over $40,000 |
| Over $150,000 but not over $500,000 | $9,481 plus 7.25% of excess over $150,000 |
| Over $500,000 | $34,856 plus 7.7% of excess over $500,000 |

(4) For taxable years beginning in two thousand four:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $16,000 | 4% of the New York taxable income |
| Over $16,000 but not over $22,000 | $640 plus 4.5% of excess over $16,000 |
| Over $22,000 but not over $26,000 | $910 plus 5.25% of excess over $22,000 |
| Over $26,000 but not over $40,000 | $1,120 plus 5.9% of excess over $26,000 |
| Over $40,000 but not over $150,000 | $1,946 plus 6.85% of excess over |

| | |
|---|---|
| | $40,000 |
| Over $150,000 but not over $500,000 | $9,481 plus 7.375% of excess over $150,000 |
| Over $500,000 | $35,294 plus 7.7% of excess over $500,000 |

(5) For taxable years beginning in two thousand three:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $16,000 | 4% of the New York taxable income |
| Over $16,000 but not over $22,000 | $640 plus 4.5% of excess over $16,000 |
| Over $22,000 but not over $26,000 | $910 plus 5.25% of excess over $22,000 |
| Over $26,000 but not over $40,000 | $1,120 plus 5.9% of excess over $26,000 |
| Over $40,000 but not over $150,000 | $1,946 plus 6.85% of excess over $40,000 |
| Over $150,000 but not over $500,000 | $9,481 plus 7.5% of excess over $150,000 |
| Over $500,000 | $35,731 plus 7.7% of excess over $500,000 |

(6) For taxable years beginning after nineteen hundred ninety-six and before two thousand three:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $16,000 | 4% of the New York taxable income |
| Over $16,000 but not over $22,000 | $640 plus 4.5% of excess over $16,000 |
| Over $22,000 but not over $26,000 | $910 plus 5.25% of excess over $22,000 |
| Over $26,000 but not over $40,000 | $1,120 plus 5.9% of excess over $26,000 |
| Over $40,000 | $1,946 plus 6.85% of excess over $40,000 |

(7) For taxable years beginning in nineteen hundred ninety-six:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $11,000 | 4% of the New York taxable |

| | |
|---|---|
| | income |
| Over $11,000 but not over $16,000 | $440 plus 5% of excess over $11,000 |
| Over $16,000 but not over $22,000 | $690 plus 6% of excess over $16,000 |
| Over $22,000 | $1,050 plus 7% of excess over $22,000 |

(8) For taxable years beginning in nineteen hundred ninety-five:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $13,000 | 4.55% of the New York taxable income |
| Over $13,000 but not over $19,000 | $592 plus 5.55% of excess over $13,000 |
| Over $19,000 but not over $25,000 | $925 plus 6.55% of excess over $19,000 |
| Over $25,000 | $1,318 plus 7.5% of excess over $25,000 |

(9) For taxable years beginning after nineteen hundred eighty-nine and before nineteen hundred ninety-five:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $11,000 | 4% of the New York taxable income |
| Over $11,000 but not over $16,000 | $440 plus 5% of excess over $11,000 |
| Over $16,000 but not over $22,000 | $690 plus 6% of excess over $16,000 |
| Over $22,000 but not over $26,000 | $1,050 plus 7% of excess over $22,000 |
| Over $26,000 | $1,330 plus 7.875% of excess over $26,000 |

(b) Resident heads of households. There is hereby imposed for each taxable year on the New York taxable income of every resident head of a household a tax determined in accordance with the following tables:

(1) (A) For taxable years beginning after two thousand eleven and before two thousand eighteen:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $12,000 | 4% of taxable income |

| | |
|---|---|
| Over $12,000 but not over $16,500 | $480 plus 4.5% of excess over $12,000 |
| Over $16,500 but not over $19,500 | $683 plus 5.25% of excess over $16,500 |
| Over $19,500 but not over $30,000 | $840 plus 5.90% of excess over $19,500 |
| Over $30,000 but not over $100,000 | $1,460 plus 6.45% of excess over $30,000 |
| Over $100,000 but not over $250,000 | $5,975 plus 6.65% of excess over $100,000 |
| Over $250,000 but not over $1,500,000 | $15,950 plus 6.85% of excess over $250,000 |
| Over $1,500,000 | $101,575 plus 8.82% of excess over $1,500,000 |

(B)(i) For taxable years beginning in two thousand eighteen the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $12,800 | 4% of the New York taxable income |
| Over $12,800 but not over $17,650 | $512 plus 4.5% of excess over $12,800 |
| Over $17,650 but not over $20,900 | $730 plus 5.25% of excess over $17,650 |
| Over $20,900 but not over $32,200 | $901 plus 5.9% of excess over $20,900 |
| Over $32,200 but not over $107,650 | $1,568 plus 6.33% of excess over $32,200 |
| Over $107,650 but not over $269,300 | $6,344 plus 6.57% of excess over $107,650 |
| Over $269,300 but not over $1,616,450 | $16,964 plus 6.85% of excess over $269,300 |
| Over $1,616,450 | $109,244 plus 8.82% of excess over $1,616,450 |

(ii) For taxable years beginning in two thousand nineteen the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $12,800 | 4% of the New York taxable income |
| Over $12,800 but not over $17,650 | $512 plus 4.5% of excess over $12,800 |
| Over $17,650 but not over $20,900 | $730 plus 5.25% of excess over $17,650 |

| | |
|---|---|
| Over $20,900 but not over $32,200 | $901 plus 5.9% of excess over $20,900 |
| Over $32,200 but not over $107,650 | $1,568 plus 6.21% of excess over $32,200 |
| Over $107,650 but not over $269,300 | $6,253 plus 6.49% of excess over $107,650 |
| Over $269,300 but not over $1,616,450 | $16,744 plus 6.85% of excess over $269,300 |
| Over $1,616,450 | $109,024 plus 8.82% of excess over $1,616,450 |

(iii) For taxable years beginning in two thousand twenty the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $12,800 | 4% of the New York taxable income |
| Over $12,800 but not over $17,650 | $512 plus 4.5% of excess over $12,800 |
| Over $17,650 but not over $20,900 | $730 plus 5.25% of excess over $17,650 |
| Over $20,900 but not over $32,200 | $901 plus 5.9% of excess over $20,900 |
| Over $32,200 but not over $107,650 | $1,568 plus 6.09% of excess over $32,200 |
| Over $107,650 but not over $269,300 | $6,162 plus 6.41% of excess over $107,650 |
| Over $269,300 but not over $1,616,450 | $16,524 plus 6.85% of excess over $269,300 |
| Over $1,616,450 | $108,804 plus 8.82% of excess over $1,616,450 |

(iv) For taxable years beginning in two thousand twenty-one the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $12,800 | 4% of the New York taxable income |
| Over $12,800 but not over $17,650 | $512 plus 4.5% of excess over $12,800 |
| Over $17,650 but not over $20,900 | $730 plus 5.25% of excess over $17,650 |
| Over $20,900 but not over $32,200 | $901 plus 5.9% of excess over $20,900 |
| Over $32,200 but not over $107,650 | $1,568 plus 5.97% of excess over $32,200 |

| | |
|---|---|
| Over $107,650 but not over $269,300 | $6,072 plus 6.33% of excess over $107,650 |
| Over $269,300 but not over $1,616,450 | $16,304 plus 6.85% of excess over $269,300 |
| Over $1,616,450 but not over $5,000,000 | $108,584 plus 9.65% of excess over $1,616,450 |
| Over $5,000,000 but not over $25,000,000 | $435,097 plus 10.30% of excess over $5,000,000 |
| Over $25,000,000 | $2,495,097 plus 10.90% of excess over $25,000,000 |

(v) For taxable years beginning in two thousand twenty-two the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $12,800 | 4% of the New York taxable income |
| Over $12,800 but not over $17,650 | $512 plus 4.5% of excess over $12,800 |
| Over $17,650 but not over $20,900 | $730 plus 5.25% of excess over $17,650 |
| Over $20,900 but not over $107,650 | $901 plus 5.85% of excess over $20,900 |
| Over $107,650 but not over $269,300 | $5,976 plus 6.25% of excess over $107,650 |
| Over $269,300 but not over $1,616,450 | $16,079 plus 6.85% of excess over $269,300 |
| Over $1,616,450 but not over $5,000,000 | $108,359 plus 9.65% of excess over $1,616,450 |
| Over $5,000,000 but not over $25,000,000 | $434,871 plus 10.30% of excess over $5,000,000 |
| Over $25,000,000 | $2,494,871 plus 10.90% of excess over $25,000,000 |

(vi) For taxable years beginning in two thousand twenty-three and before two thousand twenty-six the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $12,800 | 4% of the New York taxable income |
| Over $12,800 but not over $17,650 | $512 plus 4.5% of excess over $12,800 |
| Over $17,650 but not over $20,900 | $730 plus 5.25% of excess over |

| | |
|---|---|
| | $17,650 |
| Over $20,900 but not over $107,650 | $901 plus 5.5% of excess over $20,900 |
| Over $107,650 but not over $269,300 | $5,672 plus 6.00% of excess over $107,650 |
| Over $269,300 but not over $1,616,450 | $15,371 plus 6.85% of excess over $269,300 |
| Over $1,616,450 but not over $5,000,000 | $107,651 plus 9.65% of excess over $1,616,450 |
| Over $5,000,000 but not over $25,000,000 | $434,163 plus 10.30% of excess over $5,000,000 |
| Over $25,000,000 | $2,494,163 plus 10.90% of excess over $25,000,000 |

(vii) For taxable years beginning after two thousand twenty-five and before two thousand twenty-seven the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $12,800 | 3.90% of the New York taxable income |
| Over $12,800 but not over $17,650 | $499 plus 4.40% of excess over $12,800 |
| Over $17,650 but not over $20,900 | $712 plus 5.15% of excess over $17,650 |
| Over $20,900 but not over $107,650 | $879 plus 5.40% of excess over $20,900 |
| Over $107,650 but not over $269,300 | $5,564 plus 5.90% of excess over $107,650 |
| Over $269,300 but not over $1,616,450 | $15,101 plus 6.85% of excess over $269,300 |
| Over $1,616,450 but not over $5,000,000 | $107,381 plus 9.65% of excess over $1,616,450 |
| Over $5,000,000 but not over $25,000,000 | $433,894 plus 10.30% of excess over $5,000,000 |
| Over $25,000,000 | $2,493,894 plus 10.90% of excess over $25,000,000 |

(viii) For taxable years beginning after two thousand twenty-six and before two thousand thirty-three the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|

| | |
|---|---|
| Not over $12,800 | 3.80% of the New York taxable income |
| Over $12,800 but not over $17,650 | $486 plus 4.30% of excess over $12,800 |
| Over $17,650 but not over $20,900 | $695 plus 5.05% of excess over $17,650 |
| Over $20,900 but not over $107,650 | $859 plus 5.30% of excess over $20,900 |
| Over $107,650 but not over $269,300 | $5,457 plus 5.80% of excess over $107,650 |
| Over $269,300 but not over $1,616,450 | $14,833 plus 6.85% of excess over $269,300 |
| Over $1,616,450 but not over $5,000,000 | $107,113 plus 9.65% of excess over $1,616,450 |
| Over $5,000,000 but not over $25,000,000 | $433,626 plus 10.30% of excess over $5,000,000 |
| Over $25,000,000 | $2,493,626 plus 10.90% of excess over $25,000,000 |

(ix) For taxable years beginning after two thousand thirty-two the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $12,800 | 3.80% of the New York taxable income |
| Over $12,800 but not over $17,650 | $486 plus 4.30% of excess over $12,800 |
| Over $17,650 but not over $20,900 | $695 plus 5.05% of excess over $17,650 |
| Over $20,900 but not over $107,650 | $859 plus 5.30% of excess over $20,900 |
| Over $107,650 but not over $269,300 | $5,457 plus 5.80% of excess over $107,650 |
| Over $269,300 but not over $1,616,450 | $14,833 plus 6.85% of excess over $269,300 |
| Over $1,616,450 | $107,113 plus 8.82% of excess over $1,616,450 |

(1-a) For taxable years beginning after two thousand eight and before two thousand twelve:

| If the New York taxable income is: | The tax is: |
| --- | --- |
| Not over $11,000 | 4% of the New York taxable income |
| Over $11,000 but not over $15,000 | $440 plus 4.5% of excess over $11,000 |
| Over $15,000 but not over $17,000 | $620 plus 5.25% of excess over $15,000 |
| Over $17,000 but not over $30,000 | $725 plus 5.9% of excess over $17,000 |
| Over $30,000 but not over $250,000 | $1,492 plus 6.85% of excess over $30,000 |
| Over $250,000 but not over $500,000 | $16,562 plus 7.85% of excess over $250,000 |
| Over $500,000 | $36,187 plus 8.97% of excess over $500,000 |

(2) For taxable years beginning after two thousand five and before two thousand nine:

| If the New York taxable income is: | The tax is: |
| --- | --- |
| Not over $11,000 | 4% of the New York taxable income |
| Over $11,000 but not over $15,000 | $440 plus 4.5% of excess over $11,000 |
| Over $15,000 but not over $17,000 | $620 plus 5.25% of excess over $15,000 |
| Over $17,000 but not over $30,000 | $725 plus 5.9% of excess over $17,000 |
| Over $30,000 | $1,492 plus 6.85% of excess over $30,000 |

(3) For taxable years beginning in two thousand five:

| If the New York taxable income is: | The tax is: |
| --- | --- |
| Not over $11,000 | 4% of the New York taxable income |
| Over $11,000 but not over $15,000 | $440 plus 4.5% of excess over $11,000 |
| Over $15,000 but not over $17,000 | $620 plus 5.25% of excess over $15,000 |
| Over $17,000 but not over $30,000 | $725 plus 5.9% of excess over |

| | |
|---|---|
| | $17,000 |
| Over $30,000 but not over $125,000 | $1,492 plus 6.85% of excess over $30,000 |
| Over $125,000 but not over $500,000 | $8,000 plus 7.25% of excess over $125,000 |
| Over $500,000 | $35,187 plus 7.7% of excess over $500,000 |

(4) For taxable years beginning in two thousand four:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $11,000 | 4% of the New York taxable income |
| Over $11,000 but not over $15,000 | $440 plus 4.5% of excess over $11,000 |
| Over $15,000 but not over $17,000 | $620 plus 5.25% of excess over $15,000 |
| Over $17,000 but not over $30,000 | $725 plus 5.9% of excess over $17,000 |
| Over $30,000 but not over $125,000 | $1,492 plus 6.85% of excess over $30,000 |
| Over $125,000 but not over $500,000 | $8,000 plus 7.375% of excess over $125,000 |
| Over $500,000 | $35,656 plus 7.7% of excess over $500,000 |

(5) For taxable years beginning in two thousand three:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $11,000 | 4% of the New York taxable income |
| Over $11,000 but not over $15,000 | $440 plus 4.5% of excess over $11,000 |
| Over $15,000 but not over $17,000 | $620 plus 5.25% of excess over $15,000 |
| Over $17,000 but not over $30,000 | $725 plus 5.9% of excess over $17,000 |
| Over $30,000 but not over $125,000 | $1,492 plus 6.85% of excess over $30,000 |
| Over $125,000 but not over $500,000 | $8,000 plus 7.5% of excess over $125,000 |

| | |
|---|---|
| Over $500,000 | $36,125 plus 7.7% of excess over $500,000 |

(6) For taxable years beginning after nineteen hundred ninety-six and before two thousand three:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $11,000 | 4% of the New York taxable income |
| Over $11,000 but not over $15,000 | $440 plus 4.5% of excess over $11,000 |
| Over $15,000 but not over $17,000 | $620 plus 5.25% of excess over $15,000 |
| Over $17,000 but not over $30,000 | $725 plus 5.9% of excess over $17,000 |
| Over $30,000 | $1,492 plus 6.85% of excess over $30,000 |

(7) For taxable years beginning in nineteen hundred ninety-six:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $7,500 | 4% of the New York taxable income |
| Over $7,500 but not over $11,000 | $300 plus 5% of excess over $7,500 |
| Over $11,000 but not over $15,000 | $475 plus 6% of excess over $11,000 |
| Over $15,000 | $ 715 plus 7% of excess over $15,000 |

(8) For taxable years beginning in nineteen hundred ninety-five:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $9,000 | 4.55% of the New York taxable income |
| Over $9,000 but not over $14,000 | $410 plus 5.55% of excess over $9,000 |
| Over $14,000 but not over $19,000 | $687 plus 6.55% of excess over $14,000 |
| Over $19,000 | $1,015 plus 7.5% of excess over $19,000 |

(9) For taxable years beginning after nineteen hundred eighty-nine and before nineteen hundred ninety-five:

| If the New York taxable income is: | The tax is: |
| --- | --- |
| Not over $7,500 | 4% of the New York taxable income |
| Over $7,500 but not over $11,000 | $300 plus 5% of excess over $7,500 |
| Over $11,000 but not over $15,000 | $475 plus 6% of excess over $11,000 |
| Over $15,000 but not over $17,000 | $715 plus 7% of excess over $15,000 |
| Over $17,000 | $855 plus 7.875% of excess over $17,000 |

(c) Resident unmarried individuals, resident married individuals filing separate returns and resident estates and trusts. There is hereby imposed for each taxable year on the New York taxable income of every resident individual who is not a married individual who makes a single return jointly with his spouse under subsection (b) of section six hundred fifty-one or a resident head of a household or a resident surviving spouse, and on the New York taxable income of every resident estate and trust a tax determined in accordance with the following tables:

(1) (A) For taxable years beginning after two thousand eleven and before two thousand eighteen:

| If the New York taxable income is: | The tax is: |
| --- | --- |
| Not over $8,000 | 4% of taxable income |
| Over $8,000 but not over $11,000 | $320 plus 4.5% of excess over $8,000 |
| Over $11,000 but not over $13,000 | $455 plus 5.25% of excess over $11,000 |
| Over $13,000 but not over $20,000 | $560 plus 5.90% of excess over $13,000 |
| Over $20,000 but not over $75,000 | $973 plus 6.45% of excess over $20,000 |
| Over $75,000 but not over $200,000 | $4,521 plus 6.65% of excess over $75,000 |
| Over $200,000 but not over $1,000,000 | $12,833 plus 6.85% of excess over $200,000 |
| Over $1,000,000 | $67,633 plus 8.82% of excess over |

| | |
|---|---|
| | $1,000,000 |

(B)(i) For taxable years beginning in two thousand eighteen the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $8,500 | 4% of the New York taxable income |
| Over $8,500 but not over $11,700 | $340 plus 4.5% of excess over $8,500 |
| Over $11,700 but not over $13,900 | $484 plus 5.25% of excess over $11,700 |
| Over $13,900 but not over $21,400 | $600 plus 5.9% of excess over $13,900 |
| Over $21,400 but not over $80,650 | $1,042 plus 6.33% of excess over $21,400 |
| Over $80,650 but not over $215,400 | $4,793 plus 6.57% of excess over $80,650 |
| Over $215,400 but not over $1,077,550 | $13,646 plus 6.85% of excess over $215,400 |
| Over $1,077,550 | $72,703 plus 8.82% of excess over $1,077,550 |

(ii) For taxable years beginning in two thousand nineteen the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $8,500 | 4% of the New York taxable income |
| Over $8,500 but not over $11,700 | $340 plus 4.5% of excess over $8,500 |
| Over $11,700 but not over $13,900 | $484 plus 5.25% of excess over $11,700 |
| Over $13,900 but not over $21,400 | $600 plus 5.9% of excess over $13,900 |
| Over $21,400 but not over $80,650 | $1,042 plus 6.21% of excess over $21,400 |
| Over $80,650 but not over $215,400 | $4,721 plus 6.49% of excess over $80,650 |
| Over $215,400 but not over $1,077,550 | $13,467 plus 6.85% of excess over $215,400 |
| Over $1,077,550 | $72,524 plus 8.82% of excess over $1,077,550 |

(iii) For taxable years beginning in two thousand twenty the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $8,500 | 4% of the New York taxable income |
| Over $8,500 but not over $11,700 | $340 plus 4.5% of excess over $8,500 |
| Over $11,700 but not over $13,900 | $484 plus 5.25% of excess over $11,700 |
| Over $13,900 but not over $21,400 | $600 plus 5.9% of excess over $13,900 |
| Over $21,400 but not over $80,650 | $1,042 plus 6.09% of excess over $21,400 |
| Over $80,650 but not over $215,400 | $4,650 plus 6.41% of excess over $80,650 |
| Over $215,400 but not over $1,077,550 | $13,288 plus 6.85% of excess over $215,400 |
| Over $1,077,550 | $72,345 plus 8.82% of excess over $1,077,550 |

(iv) For taxable years beginning in two thousand twenty-one the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $8,500 | 4% of the New York taxable income |
| Over $8,500 but not over $11,700 | $340 plus 4.5% of excess over $8,500 |
| Over $11,700 but not over $13,900 | $484 plus 5.25% of excess over $11,700 |
| Over $13,900 but not over $21,400 | $600 plus 5.9% of excess over $13,900 |
| Over $21,400 but not over $80,650 | $1,042 plus 5.97% of excess over $21,400 |
| Over $80,650 but not over $215,400 | $4,579 plus 6.33% of excess over $80,650 |
| Over $215,400 but not over $1,077,550 | $13,109 plus 6.85% of excess over $215,400 |
| Over $1,077,550 but not over $5,000,000 | $72,166 plus 9.65% of excess over $1,077,550 |
| Over $5,000,000 but not over | $450,683 plus 10.30% of excess over |

| | |
|---|---|
| $25,000,000 | $5,000,000 |
| Over $25,000,000 | $2,510,683 plus 10.90% of excess over $25,000,000 |

(v) For taxable years beginning in two thousand twenty-two the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $8,500 | 4% of the New York taxable income |
| Over $8,500 but not over $11,700 | $340 plus 4.5% of excess over $8,500 |
| Over $11,700 but not over $13,900 | $484 plus 5.25% of excess over $11,700 |
| Over $13,900 but not over $80,650 | $600 plus 5.85% of excess over $13,900 |
| Over $80,650 but not over $215,400 | $4,504 plus 6.25% of excess over $80,650 |
| Over $215,400 but not over $1,077,550 | $12,926 plus 6.85% of excess over $215,400 |
| Over $1,077,550 but not over $5,000,000 | $71,984 plus 9.65% of excess over $1,077,550 |
| Over $5,000,000 but not over $25,000,000 | $450,500 plus 10.30% of excess over $5,000,000 |
| Over $25,000,000 | $2,510,500 plus 10.90% of excess over $25,000,000 |

(vi) For taxable years beginning in two thousand twenty-three and before two thousand twenty-six the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $8,500 | 4% of the New York taxable income |
| Over $8,500 but not over $11,700 | $340 plus 4.5% of excess over $8,500 |
| Over $11,700 but not over $13,900 | $484 plus 5.25% of excess over $11,700 |
| Over $13,900 but not over $80,650 | $600 plus 5.50% of excess over $13,900 |
| Over $80,650 but not over $215,400 | $4,271 plus 6.00% of excess over $80,650 |
| Over $215,400 but not over $1,077,550 | $12,356 plus 6.85% of excess over $215,400 |

| | |
|---|---|
| Over $1,077,550 but not over $5,000,000 | $71,413 plus 9.65% of excess over $1,077,550 |
| Over $5,000,000 but not over $25,000,000 | $449,929 plus 10.30% of excess over $5,000,000 |
| Over $25,000,000 | $2,509,929 plus 10.90% of excess over $25,000,000 |

(vii) For taxable years beginning after two thousand twenty-five and before two thousand twenty-seven the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $8,500 | 3.90% of the New York taxable income |
| Over $8,500 but not over $11,700 | $332 plus 4.40% of excess over $8,500 |
| Over $11,700 but not over $13,900 | $473 plus 5.15% of excess over $11,700 |
| Over $13,900 but not over $80,650 | $586 plus 5.40% of excess over $13,900 |
| Over $80,650 but not over $215,400 | $4,191 plus 5.90% of excess over $80,650 |
| Over $215,400 but not over $1,077,550 | $12,141 plus 6.85% of excess over $215,400 |
| Over $1,077,550 but not over $5,000,000 | $71,198 plus 9.65% of excess over $1,077,550 |
| Over $5,000,000 but not over $25,000,000 | $449,714 plus 10.30% of excess over $5,000,000 |
| Over $25,000,000 | $2,509,714 plus 10.90% of excess over $25,000,000 |

(viii) For taxable years beginning after two thousand twenty-six and before two thousand thirty-three the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $8,500 | 3.80% of the New York taxable income |
| Over $8,500 but not over $11,700 | $323 plus 4.30% of excess over $8,500 |
| Over $11,700 but not over $13,900 | $461 plus 5.05% of excess over $11,700 |
| Over $13,900 but not over $80,650 | $572 plus 5.30% of excess over $13,900 |
| Over $80,650 but not over $215,400 | $4,110 plus 5.80% of excess |

| | |
|---|---|
| | over $80,650 |
| Over $215,400 but not over $1,077,550 | $11,926 plus 6.85% of excess over $215,400 |
| Over $1,077,550 but not over $5,000,000 | $70,983 plus 9.65% of excess over $1,077,550 |
| Over $5,000,000 but not over $25,000,000 | $449,499 plus 10.30% of excess over $5,000,000 |
| Over $25,000,000 | $2,509,499 plus 10.90% of excess over $25,000,000 |

(ix) For taxable years beginning after two thousand thirty-two the following rates shall apply:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $8,500 | 3.80% of the New York taxable income |
| Over $8,500 but not over $11,700 | $323 plus 4.30% of excess over $8,500 |
| Over $11,700 but not over $13,900 | $461 plus 5.05% of excess over $11,700 |
| Over $13,900 but not over $80,650 | $572 plus 5.30% of excess over $13,900 |
| Over $80,650 but not over $215,400 | $4,110 plus 5.80% of excess over $80,650 |
| Over $215,400 but not over $1,077,550 | $11,926 plus 6.85% of excess over $215,400 |
| Over $1,077,550 | $70,983 plus 8.82% of excess over $1,077,550 |

(1-a) For taxable years beginning after two thousand eight and before two thousand twelve:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $8,000 | 4% of the New York taxable income |
| Over $8,000 but not over $11,000 | $320 plus 4.5% of excess over $8,000 |
| Over $11,000 but not over $13,000 | $455 plus 5.25% of excess over $11,000 |
| Over $13,000 but not over $20,000 | $560 plus 5.9% of excess over $13,000 |
| Over $20,000 but not over $200,000 | $973 plus 6.85% of excess over |

| | |
|---|---|
| | $20,000 |
| Over $200,000 but not over $500,000 | $13,303 plus 7.85% of excess over $200,000 |
| Over $500,000 | $36,853 plus 8.97% of excess over $500,000 |

(2) For taxable years beginning after two thousand five and before two thousand nine:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $8,000 | 4% of the New York taxable income |
| Over $8,000 but not over $11,000 | $320 plus 4.5% of excess over $8,000 |
| Over $11,000 but not over $13,000 | $455 plus 5.25% of excess over $11,000 |
| Over $13,000 but not over $20,000 | $560 plus 5.9% of excess over $13,000 |
| Over $20,000 | $973 plus 6.85% of excess over $20,000 |

(3) For taxable years beginning in two thousand five:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $8,000 | 4% of the New York taxable income |
| Over $8,000 but not over $11,000 | $320 plus 4.5% of excess over $8,000 |
| Over $11,000 but not over $13,000 | $455 plus 5.25% of excess over $11,000 |
| Over $13,000 but not over $20,000 | $560 plus 5.9% of excess over $13,000 |
| Over $20,000 but not over $100,000 | $973 plus 6.85% of excess over $20,000 |
| Over $100,000 but not over $500,000 | $6,453 plus 7.25% of excess over $100,000 |
| Over $500,000 | $35,453 plus 7.7% of excess over $500,000 |

(4) For taxable years beginning in two thousand four:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $8,000 | 4% of the New York taxable |

| | |
|---|---|
| | income |
| Over $8,000 but not over $11,000 | $320 plus 4.5% of excess over $8,000 |
| Over $11,000 but not over $13,000 | $455 plus 5.25% of excess over $11,000 |
| Over $13,000 but not over $20,000 | $560 plus 5.9% of excess over $13,000 |
| Over $20,000 but not over $100,000 | $973 plus 6.85% of excess over $20,000 |
| Over $100,000 but not over $500,000 | $6,453 plus 7.375% of excess over $100,000 |
| Over $500,000 | $35,953 plus 7.7% of excess over $500,000 |

(5) For taxable years beginning in two thousand three:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $8,000 | 4% of the New York taxable income |
| Over $8,000 but not over $11,000 | $320 plus 4.5% of excess over $8,000 |
| Over $11,000 but not over $13,000 | $455 plus 5.25% of excess over $11,000 |
| Over $13,000 but not over $20,000 | $560 plus 5.9% of excess over $13,000 |
| Over $20,000 but not over $100,000 | $973 plus 6.85% of excess over $20,000 |
| Over $100,000 but not over $500,000 | $6,453 plus 7.5% of excess over $100,000 |
| Over $500,000 | $36,453 plus 7.7% of excess over $500,000 |

(6) For taxable years beginning after nineteen hundred ninety-six and before two thousand three:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $8,000 | 4% of the New York taxable income |
| Over $8,000 but not over $11,000 | $320 plus 4.5% of excess over $8,000 |
| Over $11,000 but not over $13,000 | $455 plus 5.25% of excess over |

| | |
|---|---|
| | $11,000 |
| Over $13,000 but not over $20,000 | $560 plus 5.9% of excess over $13,000 |
| Over $20,000 | $973 plus 6.85% of excess over $20,000 |

(7) For taxable years beginning in nineteen hundred ninety-six:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $5,500 | 4% of the New York taxable income |
| Over $5,500 but not over $8,000 | $220 plus 5% of excess over $5,500 |
| Over $8,000 but not over $11,000 | $345 plus 6% of excess over $8,000 |
| Over $11,000 | $525 plus 7% of excess over $11,000 |

(8) For taxable years beginning in nineteen hundred ninety-five:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $6,500 | 4.55% of the New York taxable income |
| Over $6,500 but not over $9,500 | $296 plus 5.55% of excess over $6,500 |
| Over $9,500 but not over $12,500 | $462 plus 6.55% of excess over $9,500 |
| Over $12,500 | $659 plus 7.5% of excess over $12,500 |

(9) For taxable years beginning after nineteen hundred eighty-nine and before nineteen hundred ninety-five:

| If the New York taxable income is: | The tax is: |
|---|---|
| Not over $5,500 | 4% of the New York taxable income |
| Over $5,500 but not over $8,000 | $220 plus 5% of excess over $5,500 |
| Over $8,000 but not over $11,000 | $345 plus 6% of excess over $8,000 |
| Over $11,000 but not over $13,000 | $525 plus 7% of excess over $11,000 |

| | |
|---|---|
| Over $13,000 | $665 plus 7.875% of excess over $13,000 |

(d) Tax table benefit recapture. For taxable years beginning after nineteen hundred ninety, there is hereby imposed a supplemental tax in addition to the tax imposed under subsections (a), (b) and (c) of this section for the purpose of recapturing the benefit of the tax tables contained in such subsections or section six hundred ninety-nine of this article, as the case may be. The supplemental tax shall be an amount equal to the sum of the tax table benefits in paragraphs one, two and three of this subsection multiplied by their respective fractions in such paragraphs provided, however, that paragraph two of this subsection shall not apply to taxpayers that are not subject to the second highest rate of tax.

(1) Resident married individuals filing joint returns, resident surviving spouses, resident heads of households, resident unmarried individuals, resident married individuals filing separate returns and resident estates and trusts. (A) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in subsection (a), (b) or (c), of this section, as the case may be, or in section six hundred ninety-nine, as the case may be, not subject to the 6.85 percent rate of tax for the taxable year multiplied by such rate and (ii) the dollar denominated tax for such amount of taxable income set forth in the tax table applicable to the taxable year in subsection (a), (b) or (c) of this section, as the case may be, or section six hundred ninety-nine, as the case may be.

(B) The fraction is computed as follows: the numerator is the lesser of fifty thousand dollars or the excess of New York adjusted gross income for the taxable year over one hundred thousand dollars and the denominator is fifty thousand dollars.

(2) Resident married individuals filing joint returns, surviving spouses, resident heads of households, resident unmarried individuals, resident married individuals filing separate returns and resident estates and trusts. (A) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in subsection (a), (b) or (c) of this section, as the case may be, not subject to the second highest rate of tax for the taxable year multiplied by such rate and (ii) the second highest dollar denominated

tax for such amount of taxable income set forth in the tax table applicable to the taxable year in subsection (a), (b) or (c) of this section, as the case may be, less the tax table benefit in paragraph one of this subsection.

(B) For taxable years beginning after two thousand two and before two thousand six, the fraction is computed as follows: the numerator is the lesser of fifty thousand dollars or the excess of New York adjusted gross income for the taxable year over one hundred fifty thousand dollars and the denominator is fifty thousand dollars. For taxable years beginning after two thousand eight and before two thousand twelve, the fraction is computed as follows: the numerator is the lesser of fifty thousand dollars or the excess of New York adjusted gross income for the taxable year over three hundred thousand dollars and the denominator is fifty thousand dollars.

(C) This paragraph shall only apply to taxable years beginning after two thousand two and before two thousand six and after two thousand eight and before two thousand twelve.

(3) Resident married individuals filing joint returns, surviving spouses, resident heads of households, resident unmarried individuals, resident married individuals filing separate returns and resident estates and trusts. (A) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in subsection (a), (b) or (c) of this section, as the case may be, not subject to the highest rate of tax for the taxable year multiplied by such rate and (ii) the highest dollar denominated tax set forth in the tax table applicable to the taxable year in subsection (a), (b) or (c) of this section, as the case may be, less the sum of the tax table benefits in paragraphs one and two of this subsection.

(B) For such taxpayers with adjusted gross income over five hundred thousand dollars, for taxable years beginning after two thousand eight and before two thousand twelve, the fraction is computed as follows: the numerator is the lesser of fifty thousand dollars or the excess of New York adjusted gross income for the taxable year over five hundred thousand dollars and the denominator is fifty thousand dollars. Provided, however, that the total tax prior to the application of any tax credits shall not exceed the highest rate of tax set forth in the tax table in subsection (a) of this section multiplied by the taxpayer's

taxable income.

(C) This paragraph shall only apply to taxable years beginning after two thousand two and before two thousand six and after two thousand eight and before two thousand twelve.

(d-1) Alternative tax table benefit recapture. Notwithstanding the provisions of subsection (d) of this section, for taxable years beginning after two thousand eleven, there is hereby imposed a supplemental tax in addition to the tax imposed under subsections (a), (b) and (c) of this section for the purpose of recapturing the benefit of the tax tables contained in such subsections. During these taxable years, any reference in this chapter to subsection (d) of this section shall be read as a reference to this subsection.

(1) For resident married individuals filing joint returns and resident surviving spouses, the supplemental tax shall be an amount equal to the sum of the tax table benefits described in subparagraphs (A), (B), (C) and (D) of this paragraph multiplied by their respective fractions in such subparagraphs. Furthermore, in making the calculations described in these subparagraphs in taxable years beginning after tax year two thousand seventeen, the applicable tax rates specified in subparagraph (B) of paragraph one of subsection (a) of this section shall be substituted for the rates referenced in these subparagraphs.

(A) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in paragraph one of subsection (a) of this section not subject to the 6.45 percent rate of tax for the taxable year multiplied by such rate and (ii) the dollar denominated tax for such amount of taxable income set forth in the tax table applicable to the taxable year in paragraph one of subsection (a) of this section. The fraction for this subparagraph is computed as follows: the numerator is the lesser of fifty thousand dollars or the excess of New York adjusted gross income for the taxable year over one hundred thousand dollars and the denominator is fifty thousand dollars.

(B) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in paragraph one of subsection (a) of this section not subject to the 6.65 percent rate of tax for the taxable year multiplied by such rate and (ii) the dollar denominated tax for such amount of taxable income set forth in the tax table applicable to the taxable year in paragraph one of subsection (a) of this section

less the tax table benefit in subparagraph (A) of this paragraph. The fraction for this subparagraph is computed as follows: the numerator is the lesser of fifty thousand dollars or the excess of New York adjusted gross income for the taxable year over one hundred fifty thousand dollars and the denominator is fifty thousand dollars. Provided, however, this subparagraph shall not apply to taxpayers who are not subject to the 6.65 percent tax rate.

(C) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in paragraph one of subsection (a) of this section not subject to the 6.85 percent rate of tax for the taxable year multiplied by such rate and (ii) the dollar denominated tax for such amount of taxable income set forth in the tax table applicable to the taxable year in paragraph one of subsection (a) of this section less the sum of the tax table benefit in subparagraphs (A) and (B) of this paragraph. The fraction for this subparagraph is computed as follows: the numerator is the lesser of fifty thousand dollars or the excess of New York adjusted gross income for the taxable year over three hundred thousand dollars and the denominator is fifty thousand dollars. Provided, however, this subparagraph shall not apply to taxpayers who are not subject to the 6.85 percent tax rate.

(D) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in paragraph one of subsection (a) of this section not subject to the 8.82 percent rate of tax for the taxable year multiplied by such rate and (ii) the dollar denominated tax for such amount of taxable income set forth in the tax table applicable to the taxable year in paragraph one of subsection (a) of this section less the sum of the tax table benefits in subparagraphs (A), (B) and (C) of this paragraph. The fraction for this subparagraph is computed as follows: the numerator is the lesser of fifty thousand dollars or the excess of New York adjusted gross income for the taxable year over two million dollars and the denominator is fifty thousand dollars. This subparagraph shall apply only to taxable years beginning on or after January first, two thousand twelve and before January first, two thousand twenty-one and for tax years beginning on or after January first, two thousand twenty-eight.

(E) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in paragraph one of subsection

(a) of this section not subject to the 9.65 percent rate of tax for the taxable year multiplied by such rate and (ii) the dollar denominated tax for such amount of taxable income set forth in the tax table applicable to the taxable year in paragraph one of subsection (a) of this section less the sum of the tax table benefits in subparagraphs (A), (B), and (C) of this paragraph. The fraction for this subparagraph is computed as follows: the numerator is the lesser of fifty thousand dollars or excess of New York adjusted gross income for the taxable year over two million dollars and the denominator is fifty thousand dollars. This subparagraph shall apply only to the taxable years beginning on or after January first, two thousand twenty-one and before January first, two thousand twenty-eight.

(F) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in paragraph one of subsection (a) of this section not subject to the 10.30 percent rate of tax for the taxable year multiplied by such rate and (ii) the dollar denominated tax for such amount of taxable income set forth in the tax table applicable to the taxable year in paragraph one of subsection (a) of this section less the sum of the tax table benefits in subparagraphs (A), (B), (C) and (E) of this paragraph. The fraction for this subparagraph is computed as follows: the numerator is the lesser of fifty thousand dollars or excess of New York adjusted gross income for the taxable year over five million dollars and the denominator is fifty thousand dollars. This subparagraph shall apply only to the taxable years beginning on or after January first, two thousand twenty-one and before January first, two thousand twenty-eight.

(G) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in paragraph one of subsection (a) of this section not subject to the 10.90 percent rate of tax for the taxable year multiplied by such rate and (ii) the dollar denominated tax for such amount of taxable income set forth in the tax table applicable to the taxable year in paragraph one of subsection (a) of this section less the sum of the tax table benefits in subparagraphs (A), (B), (C), (E) and (F) of this paragraph. The fraction for this subparagraph is computed as follows: the numerator is the lesser of fifty thousand dollars or excess of New York adjusted gross income for the taxable year over twenty-five million dollars and the denominator is fifty thousand

dollars. This subparagraph shall apply only to the taxable years beginning on or after January first, two thousand twenty-one and before January first, two thousand twenty-eight.

(H) Provided, however, the total tax prior to the application of any tax credits shall not exceed the highest rate of tax set forth in the tax tables in subsection (a) of this section multiplied by the taxpayer's taxable income.

(2) For resident heads of households, the supplemental tax shall be an amount equal to the sum of the tax table benefits described in subparagraphs (A), (B) and (C) of this paragraph multiplied by their respective fractions in such subparagraphs. Furthermore, in making the calculations described in these subparagraphs in taxable years beginning after tax year two thousand seventeen, the applicable tax rates specified in subparagraph (B) of paragraph one of subsection (b) of this section shall be substituted for the rates referenced in these subparagraphs.

(A) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in paragraph one of subsection (b) of this section not subject to the 6.65 percent rate of tax for the taxable year multiplied by such rate and (ii) the dollar denominated tax for such amount of taxable income set forth in the tax table applicable to the taxable year in paragraph one of subsection (b) of this section. The fraction for this subparagraph is computed as follows: the numerator is the lesser of fifty thousand dollars or the excess of New York adjusted gross income for the taxable year over one hundred thousand dollars and the denominator is fifty thousand dollars.

(B) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in paragraph one of subsection (b) of this section not subject to the 6.85 percent rate of tax for the taxable year multiplied by such rate and (ii) the dollar denominated tax for such amount of taxable income set forth in the tax table applicable to the taxable year in paragraph one of subsection (b) of this section less the tax table benefit in subparagraph (A) of this paragraph. The fraction for this subparagraph is computed as follows: the numerator is the lesser of fifty thousand dollars or the excess of New York adjusted gross income for the taxable year over two hundred fifty thousand dollars and the denominator is fifty thousand dollars. Provided,

however, this subparagraph shall not apply to taxpayers who are not subject to the 6.85 percent tax rate.

(C) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in paragraph one of subsection (b) of this section not subject to the 8.82 percent rate of tax for the taxable year multiplied by such rate and (ii) the dollar denominated tax for such amount of taxable income set forth in the tax table applicable to the taxable year in paragraph one of subsection (b) of this section less the sum of the tax table benefits in subparagraphs (A) and (B) of this paragraph. The fraction for this subparagraph is computed as follows: the numerator is the lesser of fifty thousand dollars or the excess of New York adjusted gross income for the taxable year over one million five hundred thousand dollars and the denominator is fifty thousand dollars. This subparagraph shall apply only to taxable years beginning on or after January first, two thousand twelve and before January first, two thousand twenty-one and for tax years beginning on or after January first, two thousand twenty-eight.

(D) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in paragraph one of subsection (a) of this section not subject to the 9.65 percent rate of tax for the taxable year multiplied by such rate and (ii) the dollar denominated tax for such amount of taxable income set forth in the tax table applicable to the taxable year in paragraph one of subsection (a) of this section less the sum of the tax table benefits in subparagraphs (A) and (B) of this paragraph. The fraction for this subparagraph is computed as follows: the numerator is the lesser of fifty thousand dollars or excess of New York adjusted gross income for the taxable year over one million five hundred thousand dollars and the denominator is fifty thousand dollars. This subparagraph shall apply only to the taxable years beginning on or after January first, two thousand twenty-one and before January first, two thousand twenty-eight.

(E) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in paragraph one of subsection (a) of this section not subject to the 10.30 percent rate of tax for the taxable year multiplied by such rate and (ii) the dollar denominated tax for such amount of taxable income set forth in the tax table applicable to the taxable year in paragraph one of subsection (a) of this section

less the sum of the tax table benefits in subparagraphs (A), (B) and (D) of this paragraph. The fraction for this subparagraph is computed as follows: the numerator is the lesser of fifty thousand dollars or excess of New York adjusted gross income for the taxable year over five million dollars and the denominator is fifty thousand dollars. This subparagraph shall apply only to the taxable years beginning on or after January first, two thousand twenty-one and before January first, two thousand twenty-eight.

(F) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in paragraph one of subsection (a) of this section not subject to the 10.90 percent rate of tax for the taxable year multiplied by such rate and (ii) the dollar denominated tax for such amount of taxable income set forth in the tax table applicable to the taxable year in paragraph one of subsection (a) of this section less the sum of the tax table benefits in subparagraphs (A), (B), (D) and (E) of this paragraph. The fraction for this subparagraph is computed as follows: the numerator is the lesser of fifty thousand dollars or excess of New York adjusted gross income for the taxable year over twenty-five million dollars and the denominator is fifty thousand dollars. This subparagraph shall apply only to the taxable years beginning on or after January first, two thousand twenty-one and before January first, two thousand twenty-eight.

(G) Provided, however, the total tax prior to the application of any tax credits shall not exceed the highest rate of tax set forth in the tax tables in subsection (b) of this section multiplied by the taxpayer's taxable income.

(3) For resident unmarried individuals, resident married individuals filing separate returns and resident estates and trusts, the supplemental tax shall be an amount equal to the sum of the tax table benefits described in subparagraphs (A), (B) and (C) of this paragraph multiplied by their respective fractions in such subparagraphs. Furthermore, in making the calculations described in these subparagraphs in taxable years beginning after tax year two thousand seventeen, the applicable tax rates specified in subparagraph (B) of paragraph one of subsection (c) of this section shall be substituted for the rates referenced in these subparagraphs.

(A) The tax table benefit is the difference between (i) the amount of

taxable income set forth in the tax table in paragraph one of subsection (c) of this section not subject to the 6.65 percent rate of tax for the taxable year multiplied by such rate and (ii) the dollar denominated tax for such amount of taxable income set forth in the tax table applicable to the taxable year in paragraph one of subsection (c) of this section. The fraction is computed as follows: the numerator is the lesser of fifty thousand dollars or the excess of New York adjusted gross income for the taxable year over one hundred thousand dollars and the denominator is fifty thousand dollars.

(B) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in paragraph one of subsection (c) of this section not subject to the 6.85 percent rate of tax for the taxable year multiplied by such rate and (ii) the dollar denominated tax for such amount of taxable income set forth in the tax table applicable to the taxable year in paragraph one of subsection (c) of this section less the tax table benefit in subparagraph (A) of this paragraph. The fraction for this subparagraph is computed as follows: the numerator is the lesser of fifty thousand dollars or the excess of New York adjusted gross income for the taxable year over two hundred thousand dollars and the denominator is fifty thousand dollars. Provided, however, this subparagraph shall not apply to taxpayers who are not subject to the 6.85 percent tax rate.

(C) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in paragraph one of subsection (c) of this section not subject to the 8.82 percent rate of tax for the taxable year multiplied by such rate and (ii) the dollar denominated tax for such amount of taxable income set forth in the tax table applicable to the taxable year in paragraph one of subsection (c) of this section less the sum of the tax table benefits in subparagraphs (A) and (B) of this paragraph. The fraction for this subparagraph is computed as follows: the numerator is the lesser of fifty thousand dollars or the excess of New York adjusted gross income for the taxable year over one million dollars and the denominator is fifty thousand dollars. This subparagraph shall apply only to taxable years beginning on or after January first, two thousand twelve and before January first, two thousand twenty-one and for tax years beginning on or after January first, two thousand twenty-eight.

(D) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in paragraph one of subsection (a) of this section not subject to the 9.65 percent rate of tax for the taxable year multiplied by such rate and (ii) the dollar denominated tax for such amount of taxable income set forth in the tax table applicable to the taxable year in paragraph one of subsection (a) of this section less the sum of the tax table benefits in subparagraphs (A) and (B) of this paragraph. The fraction for this subparagraph is computed as follows: the numerator is the lesser of fifty thousand dollars or excess of New York adjusted gross income for the taxable year over one million five hundred thousand dollars and the denominator is fifty thousand dollars. This subparagraph shall apply only to the taxable years beginning on or after January first, two thousand twenty-one and before January first, two thousand twenty-eight.

(E) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in paragraph one of subsection (a) of this section not subject to the 10.30 percent rate of tax for the taxable year multiplied by such rate and (ii) the dollar denominated tax for such amount of taxable income set forth in the tax table applicable to the taxable year in paragraph one of subsection (a) of this section less the sum of the tax table benefits in subparagraphs (A), (B) and (D) of this paragraph. The fraction for this subparagraph is computed as follows: the numerator is the lesser of fifty thousand dollars or excess of New York adjusted gross income for the taxable year over five million dollars and the denominator is fifty thousand dollars. This subparagraph shall apply only to the taxable years beginning on or after January first, two thousand twenty-one and before January first, two thousand twenty-eight.

(F) The tax table benefit is the difference between (i) the amount of taxable income set forth in the tax table in paragraph one of subsection (a) of this section not subject to the 10.90 percent rate of tax for the taxable year multiplied by such rate and (ii) the dollar denominated tax for such amount of taxable income set forth in the tax table applicable to the taxable year in paragraph one of subsection (a) of this section less the sum of the tax table benefits in subparagraphs (A), (B), (D) and (E) of this paragraph. The fraction for this subparagraph is computed as follows: the numerator is the lesser of fifty thousand

dollars or excess of New York adjusted gross income for the taxable year over twenty-five million dollars and the denominator is fifty thousand dollars. This subparagraph shall apply only to the taxable years beginning on or after January first, two thousand twenty-one and before January first, two thousand twenty-eight.

(G) Provided, however, the total tax prior to the application of any tax credits shall not exceed the highest rate of tax set forth in the tax tables in subsection (c) of this section multiplied by the taxpayer's taxable income.

(d-2) Alternative tax table benefit recapture. Notwithstanding the provisions of subsection (d) or (d-1) of this section, for taxable years beginning on or after two thousand twenty-one and before two thousand twenty-two, there is hereby imposed a supplemental tax in addition to the tax imposed under subsections (a), (b) and (c) of this section for the purpose of recapturing the benefit of the tax tables contained in such subsections. During these taxable years, any reference in this chapter to subsection (d) or (d-1) of this section shall be read as a reference to this subsection.

(1) For resident married individuals filing joint returns and resident surviving spouses:

(A) If New York adjusted gross income is greater than $107,650, but not over $25,000,000:

(i) the recapture base and incremental benefit shall be determined by New York taxable income as follows:

| Greater than | Not over | Recapture Base | Incremental Benefit |
|---|---|---|---|
| $43,000 | $161,550 | $0 | $474 |
| $161,550 | $323,200 | $474 | $582 |
| $323,200 | $2,155,350 | $1,056 | $1,680 |
| $2,155,350 | $5,000,000 | $2,736 | $60,350 |
| $5,000,000 | $25,000,000 | $63,086 | $32,500 |

(ii) the applicable amount shall be determined by New York taxable income as follows:

| Greater than | Not over | Applicable Amount |
|---|---|---|
| $43,000 | $161,550 | New York adjusted gross income minus $107,650 |
| $161,550 | $323,200 | New York adjusted gross income minus $161,550 |
| $323,200 | $2,155,350 | New York adjusted gross income minus $323,200 |
| $2,155,350 | $5,000,000 | New York adjusted gross income minus $2,155,350 |

| | | |
|---|---|---|
| $5,000,000 | $25,000,000 | New York adjusted gross income minus $5,000,000 |

(iii) the phase-in fraction shall be a fraction, the numerator of which shall be the lesser of fifty thousand dollars or the applicable amount and the denominator of which shall be fifty thousand dollars; and

(iv) the supplemental tax due shall equal the sum of the recapture base and the product of (i) the incremental benefit and (ii) the phase-in fraction. Provided, however, that if the New York taxable income of the taxpayer is less than forty-three thousand dollars, the supplemental tax shall equal the difference between the product of 5.97 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (a) of this section, multiplied by a fraction, the numerator of which is the lesser of fifty thousand dollars or New York adjusted gross income minus one hundred seven thousand six hundred fifty dollars, and the denominator of which is fifty thousand dollars.

(B) If New York adjusted gross income is greater than twenty-five million dollars, the supplemental tax due shall equal the difference between the product of 10.90 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (a) of this section.

(2) For resident heads of households:

(A) If New York adjusted gross income is greater than $107,650, but not over $25,000,000:

(i) the recapture base and incremental benefit shall be determined by New York taxable income as follows:

| Greater than | Not over | Recapture Base | Incremental Benefit |
|---|---|---|---|
| $107,650 | $269,300 | $0 | $742 |
| $269,300 | $1,616,450 | $742 | $1,401 |
| $1,616,450 | $5,000,000 | $2,143 | $45,260 |
| $5,000,000 | $25,000,000 | $47,403 | $32,500 |

(ii) the applicable amount shall be determined by New York taxable income as follows:

| Greater than | Not over | Applicable Amount |
|---|---|---|
| $107,650 | $269,300 | New York adjusted gross income minus $107,650 |
| $269,300 | $1,616,450 | New York adjusted gross income minus $269,300 |
| $1,616,450 | $5,000,000 | New York adjusted gross income minus $1,616,450 |
| $5,000,000 | $25,000,000 | New York adjusted gross income minus $5,000,000 |

(iii) the phase-in fraction shall be a fraction, the numerator of which shall be the lesser of fifty thousand dollars or the applicable amount and the denominator of which shall be fifty thousand dollars; and

(iv) the supplemental tax due shall equal the sum of the recapture base and the product of (i) the incremental benefit and (ii) the phase-in fraction. Provided, however, that if the New York taxable income of the taxpayer is less than one hundred seven thousand six hundred fifty dollars, the supplemental tax shall equal the difference between the product of 6.33 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (b) of this section, multiplied by a fraction, the numerator of which is the lesser of fifty thousand dollars or New York adjusted gross income minus one hundred seven thousand six hundred fifty dollars, and the denominator of which is fifty thousand dollars.

(B) If New York adjusted gross income is greater than twenty-five million dollars, the supplemental tax due shall equal the difference between the product of 10.90 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (b) of this section.

(3) For resident unmarried individuals, resident married individuals filing separate returns and resident estates and trusts:

(A) If New York adjusted gross income is greater than $107,650, but not over $25,000,000:

(i) the recapture base and incremental benefit shall be determined by New York taxable income as follows:

| Greater than | Not over | Recapture Base | Incremental Benefit |
|---|---|---|---|
| $80,650 | $215,400 | $0 | $526 |
| $215,400 | $1,077,550 | $526 | $1,120 |
| $1,077,550 | $5,000,000 | $1,646 | $30,171 |
| $5,000,000 | $25,000,000 | $31,817 | $32,500 |

(ii) the applicable amount shall be determined by New York taxable income as follows:

| Greater than | Not over | Applicable Amount |
|---|---|---|
| $80,650 | $215,400 | New York adjusted gross income minus $107,650 |
| $215,400 | $1,077,550 | New York adjusted gross income minus $215,400 |
| $1,077,550 | $5,000,000 | New York adjusted gross income minus $1,077,550 |

$5,000,000 $25,000,000 New York adjusted gross income minus $5,000,000

(iii) the phase-in fraction shall be a fraction, the numerator of which shall be the lesser of fifty thousand dollars or the applicable amount and the denominator of which shall be fifty thousand dollars; and

(iv) the supplemental tax due shall equal the sum of the recapture base and the product of (i) the incremental benefit and (ii) the phase-in fraction. Provided, however, that if the New York taxable income of the taxpayer is less than eighty thousand six hundred fifty dollars, the supplemental tax shall equal the difference between the product of 6.33 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (c) of this section, multiplied by a fraction, the numerator of which is the lesser of fifty thousand dollars or New York adjusted gross income minus one hundred seven thousand six hundred fifty dollars, and the denominator of which is fifty thousand dollars.

(B) If New York adjusted gross income is greater than twenty-five million dollars, the supplemental tax due shall equal the difference between the product of 10.90 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (c) of this section.

(d-3) Alternative tax table benefit recapture. Notwithstanding the provisions of subsection (d), (d-1) or (d-2) of this section, for taxable years beginning on or after two thousand twenty-two and before two thousand twenty-three, there is hereby imposed a supplemental tax in addition to the tax imposed under subsections (a), (b) and (c) of this section for the purpose of recapturing the benefit of the tax tables contained in such subsections. During these taxable years, any reference in this chapter to subsection (d), (d-1) or (d-2) of this section shall be read as a reference to this subsection.

(1) For resident married individuals filing joint returns and resident surviving spouses:

(A) If New York adjusted gross income is greater than $107,650, but not over $25,000,000:

(i) the recapture base and incremental benefit shall be determined by New York taxable income as follows:

| Greater than | Not over | Recapture Base | Incremental Benefit |
|---|---|---|---|
| $27,900 | $161,550 | $0 | $430 |

| | | | |
|---|---|---|---|
| $161,550 | $323,200 | $430 | $646 |
| $323,200 | $2,155,350 | $1,076 | $1,940 |
| $2,155,350 | $5,000,000 | $3,016 | $60,349 |
| $5,000,000 | $25,000,000 | $63,365 | $32,500 |

(ii) the applicable amount shall be determined by New York taxable income as follows:

| Greater than | Not over | Applicable Amount |
|---|---|---|
| $27,900 | $161,550 | New York adjusted gross income minus $107,650 |
| $161,550 | $323,200 | New York adjusted gross income minus $161,550 |
| $323,200 | $2,155,350 | New York adjusted gross income minus $323,200 |
| $2,155,350 | $5,000,000 | New York adjusted gross income minus $2,155,350 |
| $5,000,000 | $25,000,000 | New York adjusted gross income minus $5,000,000 |

(iii) the phase-in fraction shall be a fraction, the numerator of which shall be the lesser of fifty thousand dollars or the applicable amount and the denominator of which shall be fifty thousand dollars; and

(iv) the supplemental tax due shall equal the sum of the recapture base and the product of (i) the incremental benefit and (ii) the phase-in fraction. Provided, however, that if the New York taxable income of the taxpayer is less than twenty-seven thousand nine hundred dollars, the supplemental tax shall equal the difference between the product of 5.85 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (a) of this section, multiplied by a fraction, the numerator of which is the lesser of fifty thousand dollars or New York adjusted gross income minus one hundred seven thousand six hundred fifty dollars, and the denominator of which is fifty thousand dollars.

(B) If New York adjusted gross income is greater than twenty-five million dollars, the supplemental tax due shall equal the difference between the product of 10.90 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (a) of this section.

(2) For resident heads of households:

(A) If New York adjusted gross income is greater than $107,650, but not over $25,000,000:

(i) the recapture base and incremental benefit shall be determined by New York taxable income as follows:

| Greater than | Not over | Recapture Base | Incremental Benefit |
|---|---|---|---|

| | | | |
|---|---|---|---|
| $107,650 | $269,300 | $0 | $752 |
| $269,300 | $1,616,450 | $752 | $1,616 |
| $1,616,450 | $5,000,000 | $2,368 | $45,261 |
| $5,000,000 | $25,000,000 | $47,629 | $32,500 |

(ii) the applicable amount shall be determined by New York taxable income as follows:

| Greater than | Not over | Applicable Amount |
|---|---|---|
| $107,650 | $269,300 | New York adjusted gross income minus $107,650 |
| $269,300 | $1,616,450 | New York adjusted gross income minus $269,300 |
| $1,616,450 | $5,000,000 | New York adjusted gross income minus $1,616,450 |
| $5,000,000 | $25,000,000 | New York adjusted gross income minus $5,000,000 |

(iii) the phase-in fraction shall be a fraction, the numerator of which shall be the lesser of fifty thousand dollars or the applicable amount and the denominator of which shall be fifty thousand dollars; and

(iv) the supplemental tax due shall equal the sum of the recapture base and the product of (i) the incremental benefit and (ii) the phase-in fraction. Provided, however, that if the New York taxable income of the taxpayer is less than one hundred seven thousand six hundred fifty dollars, the supplemental tax shall equal the difference between the product of 6.25 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (b) of this section, multiplied by a fraction, the numerator of which is the lesser of fifty thousand dollars or New York adjusted gross income minus one hundred seven thousand six hundred fifty dollars, and the denominator of which is fifty thousand dollars.

(B) If New York adjusted gross income is greater than twenty-five million dollars, the supplemental tax due shall equal the difference between the product of 10.90 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (b) of this section.

(3) For resident unmarried individuals, resident married individuals filing separate returns and resident estates and trusts:

(A) If New York adjusted gross income is greater than $107,650, but not over $25,000,000:

(i) the recapture base and incremental benefit shall be determined by New York taxable income as follows:

| Greater than | Not over | Recapture Base | Incremental Benefit |
|---|---|---|---|
| $80,650 | $215,400 | $0 | $536 |
| $215,400 | $1,077,550 | $536 | $1,293 |
| $1,077,550 | $5,000,000 | $1,829 | $30,171 |
| $5,000,000 | $25,000,000 | $32,000 | $32,500 |

(ii) the applicable amount shall be determined by New York taxable income as follows:

| Greater than | Not over | Applicable Amount |
|---|---|---|
| $80,650 | $215,400 | New York adjusted gross income minus $107,650 |
| $215,400 | $1,077,550 | New York adjusted gross income minus $215,400 |
| $1,077,550 | $5,000,000 | New York adjusted gross income minus $1,077,550 |
| $5,000,000 | $25,000,000 | New York adjusted gross income minus $5,000,000 |

(iii) the phase-in fraction shall be a fraction, the numerator of which shall be the lesser of fifty thousand dollars or the applicable amount and the denominator of which shall be fifty thousand dollars; and

(iv) the supplemental tax due shall equal the sum of the recapture base and the product of (i) the incremental benefit and (ii) the phase-in fraction. Provided, however, that if the New York taxable income of the taxpayer is less than eighty thousand six hundred fifty dollars, the supplemental tax shall equal the difference between the product of 6.25 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (c) of this section, multiplied by a fraction, the numerator of which is the lesser of fifty thousand dollars or New York adjusted gross income minus one hundred seven thousand six hundred fifty dollars, and the denominator of which is fifty thousand dollars.

(B) If New York adjusted gross income is greater than twenty-five million dollars, the supplemental tax due shall equal the difference between the product of 10.90 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (c) of this section.

(d-4) Alternative tax table benefit recapture. Notwithstanding the provisions of subsection (d), (d-1), (d-2) or (d-3) of this section, for taxable years beginning on or after two thousand twenty-three and before two thousand twenty-six, there is hereby imposed a supplemental tax in addition to the tax imposed under subsections (a), (b) and (c) of this section for the purpose of recapturing the benefit of the tax tables

contained in such subsections. During these taxable years, any reference in this chapter to subsection (d), (d-1), (d-2) or (d-3) of this section shall be read as a reference to this subsection.

(1) For resident married individuals filing joint returns and resident surviving spouses:

(A) If New York adjusted gross income is greater than $107,650, but not over $25,000,000:

(i) the recapture base and incremental benefit shall be determined by New York taxable income as follows:

| Greater than | Not over | Recapture Base | Incremental Benefit |
|---|---|---|---|
| $27,900 | $161,550 | $0 | $333 |
| $161,550 | $323,200 | $333 | $807 |
| $323,200 | $2,155,350 | $1,140 | $2,747 |
| $2,155,350 | $5,000,000 | $3,887 | $60,350 |
| $5,000,000 | $25,000,000 | $64,237 | $32,500 |

(ii) the applicable amount shall be determined by New York taxable income as follows:

| Greater than | Not over | Applicable Amount |
|---|---|---|
| $27,900 | $161,550 | New York adjusted gross income minus $107,650 |
| $161,550 | $323,200 | New York adjusted gross income minus $161,550 |
| $323,200 | $2,155,350 | New York adjusted gross income minus $323,200 |
| $2,155,350 | $5,000,000 | New York adjusted gross income minus $2,155,350 |
| $5,000,000 | $25,000,000 | New York adjusted gross income minus $5,000,000 |

(iii) the phase-in fraction shall be a fraction, the numerator of which shall be the lesser of fifty thousand dollars or the applicable amount and the denominator of which shall be fifty thousand dollars; and

(iv) the supplemental tax due shall equal the sum of the recapture base and the product of (i) the incremental benefit and (ii) the phase-in fraction. Provided, however, that if the New York taxable income of the taxpayer is less than twenty-seven thousand nine hundred dollars, the supplemental tax shall equal the difference between the product of 5.50 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (a) of this section, multiplied by a fraction, the numerator of which is the lesser of fifty thousand dollars or New York adjusted gross income minus one hundred seven thousand six hundred fifty dollars, and the denominator of which is fifty thousand dollars.

(B) If New York adjusted gross income is greater than twenty-five million dollars, the supplemental tax due shall equal the difference between the product of 10.90 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (a) of this section.

(2) For resident heads of households:

(A) If New York adjusted gross income is greater than $107,650, but not over $25,000,000:

(i) the recapture base and incremental benefit shall be determined by New York taxable income as follows:

| Greater than | Not over | Recapture Base | Incremental Benefit |
|---|---|---|---|
| $107,650 | $269,300 | $0 | $787 |
| $269,300 | $1,616,450 | $787 | $2,289 |
| $1,616,450 | $5,000,000 | $3,076 | $45,261 |
| $5,000,000 | $25,000,000 | $48,337 | $32,500 |

(ii) the applicable amount shall be determined by New York taxable income as follows:

| Greater than | Not over | Applicable Amount |
|---|---|---|
| $107,650 | $269,300 | New York adjusted gross income minus $107,650 |
| $269,300 | $1,616,450 | New York adjusted gross income minus $269,300 |
| $1,616,450 | $5,000,000 | New York adjusted gross income minus $1,616,450 |
| $5,000,000 | $25,000,000 | New York adjusted gross income minus $5,000,000 |

(iii) the phase-in fraction shall be a fraction, the numerator of which shall be the lesser of fifty thousand dollars or the applicable amount and the denominator of which shall be fifty thousand dollars; and

(iv) the supplemental tax due shall equal the sum of the recapture base and the product of (i) the incremental benefit and (ii) the phase-in fraction. Provided, however, that if the New York taxable income of the taxpayer is less than one hundred seven thousand six hundred fifty dollars, the supplemental tax shall equal the difference between the product of 6.00 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (b) of this section, multiplied by a fraction, the numerator of which is the lesser of fifty thousand dollars or New York adjusted gross income minus one hundred seven thousand six hundred fifty dollars, and the denominator of which is fifty thousand dollars.

(B) If New York adjusted gross income is greater than twenty-five million dollars, the supplemental tax due shall equal the difference between the product of 10.90 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (b) of this section.

(3) For resident unmarried individuals, resident married individuals filing separate returns and resident estates and trusts:

(A) If New York adjusted gross income is greater than $107,650, but not over $25,000,000:

(i) the recapture base and incremental benefit shall be determined by New York taxable income as follows:

| Greater than | Not over | Recapture Base | Incremental Benefit |
|---|---|---|---|
| $80,650 | $215,400 | $0 | $568 |
| $215,400 | $1,077,550 | $568 | $1,831 |
| $1,077,550 | $5,000,000 | $2,399 | $30,172 |
| $5,000,000 | $25,000,000 | $32,571 | $32,500 |

(ii) the applicable amount shall be determined by New York taxable income as follows:

| Greater than | Not over | Applicable Amount |
|---|---|---|
| $80,650 | $215,400 | New York adjusted gross income minus $107,650 |
| $215,400 | $1,077,550 | New York adjusted gross income minus $215,400 |
| $1,077,550 | $5,000,000 | New York adjusted gross income minus $1,077,550 |
| $5,000,000 | $25,000,000 | New York adjusted gross income minus $5,000,000 |

(iii) the phase-in fraction shall be a fraction, the numerator of which shall be the lesser of fifty thousand dollars or the applicable amount and the denominator of which shall be fifty thousand dollars; and

(iv) the supplemental tax due shall equal the sum of the recapture base and the product of (i) the incremental benefit and (ii) the phase-in fraction. Provided, however, that if the New York taxable income of the taxpayer is less than eighty thousand six hundred fifty dollars, the supplemental tax shall equal the difference between the product of 6.00 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (c) of this section, multiplied by a fraction, the numerator of which is the lesser of fifty thousand dollars or New York adjusted gross income minus one hundred seven thousand six hundred fifty dollars, and the denominator of which is fifty thousand dollars.

(B) If New York adjusted gross income is greater than twenty-five million dollars, the supplemental tax due shall equal the difference between the product of 10.90 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (c) of this section.

(d-5) Alternative tax table benefit recapture. Notwithstanding the provisions of subsection (d), (d-1), (d-2), (d-3), (d-4), (d-6) or (d-7) of this section, for taxable years beginning on or after two thousand twenty-six and before two thousand twenty-seven, there is hereby imposed a supplemental tax in addition to the tax imposed under subsections (a), (b) and (c) of this section for the purpose of recapturing the benefit of the tax tables contained in such subsections. During these taxable years, any reference in this chapter to subsection (d), (d-1), (d-2), (d-3), (d-4), (d-6) or (d-7) of this section shall be read as a reference to this subsection.

(1) For resident married individuals filing joint returns and resident surviving spouses:

(A) If New York adjusted gross income is greater than $107,650, but not over $25,000,000:

(i) the recapture base and incremental benefit shall be determined by New York taxable income as follows:

| Greater than | Not over | Recapture Base | Incremental Benefit |
|---|---|---|---|
| $27,900 | $161,550 | $0 | $333 |
| $161,550 | $323,200 | $333 | $807 |
| $323,200 | $2,155,350 | $1,140 | $3,071 |
| $2,155,350 | $5,000,000 | $4,211 | $60,350 |
| $5,000,000 | $25,000,000 | $64,561 | $32,500 |

(ii) the applicable amount shall be determined by New York taxable income as follows:

| Greater than | Not over | Applicable Amount |
|---|---|---|
| $27,900 | $161,550 | New York adjusted gross income minus $107,650 |
| $161,550 | $323,200 | New York adjusted gross income minus $161,550 |
| $323,200 | $2,155,350 | New York adjusted gross income minus $323,200 |
| $2,155,350 | $5,000,000 | New York adjusted gross income minus $2,155,350 |
| $5,000,000 | $25,000,000 | New York adjusted gross income minus $5,000,000 |

(iii) the phase-in fraction shall be a fraction, the numerator of which shall be the lesser of fifty thousand dollars or the applicable

amount and the denominator of which shall be fifty thousand dollars; and

(iv) the supplemental tax due shall equal the sum of the recapture base and the product of (i) the incremental benefit and (ii) the phase-in fraction. Provided, however, that if the New York taxable income of the taxpayer is less than twenty-seven thousand nine hundred dollars, the supplemental tax shall equal the difference between the product of 5.40 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (a) of this section, multiplied by a fraction, the numerator of which is the lesser of fifty thousand dollars or New York adjusted gross income minus one hundred seven thousand six hundred fifty dollars, and the denominator of which is fifty thousand dollars.

(B) If New York adjusted gross income is greater than twenty-five million dollars, the supplemental tax due shall equal the difference between the product of 10.90 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (a) of this section.

(2) For resident heads of households:

(A) If New York adjusted gross income is greater than $107,650, but not over $25,000,000:

(i) the recapture base and incremental benefit shall be determined by New York taxable income as follows:

| Greater than | Not over | Recapture Base | Incremental Benefit |
|---|---|---|---|
| $107,650 | $269,300 | $0 | $787 |
| $269,300 | $1,616,450 | $787 | $2,559 |
| $1,616,450 | $5,000,000 | $3,346 | $45,260 |
| $5,000,000 | $25,000,000 | $48,606 | $32,500 |

(ii) the applicable amount shall be determined by New York taxable income as follows:

| Greater than | Not over | Applicable Amount |
|---|---|---|
| $107,650 | $269,300 | New York adjusted gross income minus $107,650 |
| $269,300 | $1,616,450 | New York adjusted gross income minus $269,300 |
| $1,616,450 | $5,000,000 | New York adjusted gross income minus $1,616,450 |
| $5,000,000 | $25,000,000 | New York adjusted gross income minus $5,000,000 |

(iii) the phase-in fraction shall be a fraction, the numerator of which shall be the lesser of fifty thousand dollars or the applicable amount and the denominator of which shall be fifty thousand dollars; and

(iv) the supplemental tax due shall equal the sum of the recapture base and the product of (i) the incremental benefit and (ii) the phase-in fraction. Provided, however, that if the New York taxable income of the taxpayer is less than one hundred seven thousand six hundred fifty dollars, the supplemental tax shall equal the difference between the product of 5.90 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (b) of this section, multiplied by a fraction, the numerator of which is the lesser of fifty thousand dollars or New York adjusted gross income minus one hundred seven thousand six hundred fifty dollars, and the denominator of which is fifty thousand dollars.

(B) If New York adjusted gross income is greater than twenty-five million dollars, the supplemental tax due shall equal the difference between the product of 10.90 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (b) of this section.

(3) For resident unmarried individuals, resident married individuals filing separate returns and resident estates and trusts:

(A) If New York adjusted gross income is greater than $107,650, but not over $25,000,000:

(i) the recapture base and incremental benefit shall be determined by New York taxable income as follows:

| Greater than | Not over | Recapture Base | Incremental Benefit |
|---|---|---|---|
| $80,650 | $215,400 | $0 | $567 |
| $215,400 | $1,077,550 | $567 | $2,047 |
| $1,077,550 | $5,000,000 | $2,614 | $30,172 |
| $5,000,000 | $25,000,000 | $32,786 | $32,500 |

(ii) the applicable amount shall be determined by New York taxable income as follows:

| Greater than | Not over | Applicable Amount |
|---|---|---|
| $80,650 | $215,400 | New York adjusted gross income minus $107,650 |
| $215,400 | $1,077,550 | New York adjusted gross income minus $215,400 |
| $1,077,550 | $5,000,000 | New York adjusted gross income minus $1,077,550 |
| $5,000,000 | $25,000,000 | New York adjusted gross income minus $5,000,000 |

(iii) the phase-in fraction shall be a fraction, the numerator of which shall be the lesser of fifty thousand dollars or the applicable

amount and the denominator of which shall be fifty thousand dollars; and

(iv) the supplemental tax due shall equal the sum of the recapture base and the product of (i) the incremental benefit and (ii) the phase-in fraction. Provided, however, that if the New York taxable income of the taxpayer is less than eighty thousand six hundred fifty dollars, the supplemental tax shall equal the difference between the product of 5.90 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (c) of this section, multiplied by a fraction, the numerator of which is the lesser of fifty thousand dollars or New York adjusted gross income minus one hundred seven thousand six hundred fifty dollars, and the denominator of which is fifty thousand dollars.

(B) If New York adjusted gross income is greater than twenty-five million dollars, the supplemental tax due shall equal the difference between the product of 10.90 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (c) of this section.

(d-6) Alternative tax table benefit recapture. Notwithstanding the provisions of subsection (d), (d-1), (d-2), (d-3), (d-4), (d-5) or (d-7) of this section, for taxable years beginning on or after two thousand twenty-seven and before two thousand thirty-three, there is hereby imposed a supplemental tax in addition to the tax imposed under subsections (a), (b) and (c) of this section for the purpose of recapturing the benefit of the tax tables contained in such subsections. During these taxable years, any reference in this chapter to subsection (d), (d-1), (d-2), (d-3), (d-4), (d-5) or (d-7) of this section shall be read as a reference to this subsection.

(1) For resident married individuals filing joint returns and resident surviving spouses:

(A) If New York adjusted gross income is greater than $107,650, but not over $25,000,000:

(i) the recapture base and incremental benefit shall be determined by New York taxable income as follows:

| Greater than | Not over | Recapture Base | Incremental Benefit |
|---|---|---|---|
| $27,900 | $161,550 | $0 | $333 |
| $161,550 | $323,200 | $333 | $808 |

| | | | |
|---|---|---|---|
| $323,200 | $2,155,350 | $1,141 | $3,393 |
| $2,155,350 | $5,000,000 | $4,534 | $60,350 |
| $5,000,000 | $25,000,000 | $64,884 | $32,500 |

(ii) the applicable amount shall be determined by New York taxable income as follows:

| Greater than | Not over | Applicable Amount |
|---|---|---|
| $27,900 | $161,550 | New York adjusted gross income minus $107,650 |
| $161,550 | $323,200 | New York adjusted gross income minus $161,550 |
| $323,200 | $2,155,350 | New York adjusted gross income minus $323,200 |
| $2,155,350 | $5,000,000 | New York adjusted gross income minus $2,155,350 |
| $5,000,000 | $25,000,000 | New York adjusted gross income minus $5,000,000 |

(iii) the phase-in fraction shall be a fraction, the numerator of which shall be the lesser of fifty thousand dollars or the applicable amount and the denominator of which shall be fifty thousand dollars; and

(iv) the supplemental tax due shall equal the sum of the recapture base and the product of (i) the incremental benefit and (ii) the phase-in fraction. Provided, however, that if the New York taxable income of the taxpayer is less than twenty-seven thousand nine hundred dollars, the supplemental tax shall equal the difference between the product of 5.30 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (a) of this section, multiplied by a fraction, the numerator of which is the lesser of fifty thousand dollars or New York adjusted gross income minus one hundred seven thousand six hundred fifty dollars, and the denominator of which is fifty thousand dollars.

(B) If New York adjusted gross income is greater than twenty-five million dollars, the supplemental tax due shall equal the difference between the product of 10.90 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (a) of this section.

(2) For resident heads of households:

(A) If New York adjusted gross income is greater than $107,650, but not over $25,000,000:

(i) the recapture base and incremental benefit shall be determined by New York taxable income as follows:

| Greater than | Not over | Recapture Base | Incremental Benefit |
|---|---|---|---|
| $107,650 | $269,300 | $0 | $787 |
| $269,300 | $1,616,450 | $787 | $2,827 |
| $1,616,450 | $5,000,000 | $3,614 | $45,260 |
| $5,000,000 | $25,000,000 | $48,874 | $32,500 |

(ii) the applicable amount shall be determined by New York taxable income as follows:

| Greater than | Not over | Applicable Amount |
|---|---|---|
| $107,650 | $269,300 | New York adjusted gross income minus $107,650 |
| $269,300 | $1,616,450 | New York adjusted gross income minus $269,300 |
| $1,616,450 | $5,000,000 | New York adjusted gross income minus $1,616,450 |
| $5,000,000 | $25,000,000 | New York adjusted gross income minus $5,000,000 |

(iii) the phase-in fraction shall be a fraction, the numerator of which shall be the lesser of fifty thousand dollars or the applicable amount and the denominator of which shall be fifty thousand dollars; and

(iv) the supplemental tax due shall equal the sum of the recapture base and the product of (i) the incremental benefit and (ii) the phase-in fraction. Provided, however, that if the New York taxable income of the taxpayer is less than one hundred seven thousand six hundred fifty dollars, the supplemental tax shall equal the difference between the product of 5.80 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (b) of this section, multiplied by a fraction, the numerator of which is the lesser of fifty thousand dollars or New York adjusted gross income minus one hundred seven thousand six hundred fifty dollars, and the denominator of which is fifty thousand dollars.

(B) If New York adjusted gross income is greater than twenty-five million dollars, the supplemental tax due shall equal the difference between the product of 10.90 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (b) of this section.

(3) For resident unmarried individuals, resident married individuals filing separate returns and resident estates and trusts:

(A) If New York adjusted gross income is greater than $107,650, but not over $25,000,000:

(i) the recapture base and incremental benefit shall be determined by New York taxable income as follows:

| Greater than | Not over | Recapture Base | Incremental Benefit |
|---|---|---|---|
| $80,650 | $215,400 | $0 | $568 |
| $215,400 | $1,077,550 | $568 | $2,261 |
| $1,077,550 | $5,000,000 | $2,829 | $30,172 |
| $5,000,000 | $25,000,000 | $33,001 | $32,500 |

(ii) the applicable amount shall be determined by New York taxable income as follows:

| Greater than | Not over | Applicable Amount |
|---|---|---|
| $80,650 | $215,400 | New York adjusted gross income minus $107,650 |
| $215,400 | $1,077,550 | New York adjusted gross income minus $215,400 |
| $1,077,550 | $5,000,000 | New York adjusted gross income minus $1,077,550 |
| $5,000,000 | $25,000,000 | New York adjusted gross income minus $5,000,000 |

(iii) the phase-in fraction shall be a fraction, the numerator of which shall be the lesser of fifty thousand dollars or the applicable amount and the denominator of which shall be fifty thousand dollars; and

(iv) the supplemental tax due shall equal the sum of the recapture base and the product of (i) the incremental benefit and (ii) the phase-in fraction. Provided, however, that if the New York taxable income of the taxpayer is less than eighty thousand six hundred fifty dollars, the supplemental tax shall equal the difference between the

product of 5.80 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (c) of this section, multiplied by a fraction, the numerator of which is the lesser of fifty thousand dollars or New York adjusted gross income minus one hundred seven thousand six hundred fifty dollars, and the denominator of which is fifty thousand dollars.

(B) If New York adjusted gross income is greater than twenty-five million dollars, the supplemental tax due shall equal the difference between the product of 10.90 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (c) of this section.

(d-7) Alternative tax table benefit recapture. Notwithstanding the provisions of subsection (d), (d-1), (d-2), (d-3), (d-4), (d-5) or (d-6) of this section, for taxable years beginning on or after two thousand thirty-three, there is hereby imposed a supplemental tax in addition to the tax imposed under subsections (a), (b) and (c) of this section for the purpose of recapturing the benefit of the tax tables contained in such subsections. During these taxable years, any reference in this chapter to subsection (d), (d-1), (d-2), (d-3), (d-4), (d-5) or (d-6) of this section shall be read as a reference to this subsection.

(1) For resident married individuals filing joint returns and resident surviving spouses:

(A) If New York adjusted gross income is greater than $107,650:

(i) the recapture base and incremental benefit shall be determined by New York taxable income as follows:

| Greater than | Not over | Recapture Base | Incremental Benefit |
|---|---|---|---|
| $27,900 | $161,550 | $0 | $333 |
| $161,550 | $323,200 | $333 | $808 |
| $323,200 | $2,155,350 | $1,141 | $3,393 |
| $2,155,350 | | $4,534 | $42,461 |

(ii) the applicable amount shall be determined by New York taxable income as follows:

| Greater than | Not over | Applicable Amount |
|---|---|---|
| $27,900 | $161,550 | New York adjusted gross income minus $107,650 |
| $161,550 | $323,200 | New York adjusted gross income minus $161,550 |
| $323,200 | $2,155,350 | New York adjusted gross income minus $323,200 |
| $2,155,350 | | New York adjusted gross income minus $2,155,350 |

(iii) the phase-in fraction shall be a fraction, the numerator of which shall be the lesser of fifty thousand dollars or the applicable amount and the denominator of which shall be fifty thousand dollars; and

(iv) the supplemental tax due shall equal the sum of the recapture base and the product of (i) the incremental benefit and (ii) the phase-in fraction. Provided, however, that if the New York taxable income of the taxpayer is less than twenty-seven thousand nine hundred dollars, the supplemental tax shall equal the difference between the product of 5.30 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (a) of this section, multiplied by a fraction, the numerator of which is the lesser of fifty thousand dollars or New York adjusted gross income minus one hundred seven thousand six hundred fifty dollars, and the denominator of which is fifty thousand dollars.

(2) For resident heads of households:

(A) If New York adjusted gross income is greater than $107,650:

(i) the recapture base and incremental benefit shall be determined by New York taxable income as follows:

| Greater than | Not over | Recapture Base | Incremental Benefit |
|---|---|---|---|
| $107,650 | $269,300 | $0 | $787 |
| $269,300 | $1,616,450 | $787 | $2,827 |
| $1,616,450 | | $3,614 | $31,844 |

(ii) the applicable amount shall be determined by New York taxable income as follows:

| Greater than | Not over | Applicable Amount |
|---|---|---|
| $107,650 | $269,300 | New York adjusted gross income minus $107,650 |
| $269,300 | $1,616,450 | New York adjusted gross income minus $269,300 |
| $1,616,450 | | New York adjusted gross income minus $1,616,450 |

(iii) the phase-in fraction shall be a fraction, the numerator of which shall be the lesser of fifty thousand dollars or the applicable amount and the denominator of which shall be fifty thousand dollars; and

(iv) the supplemental tax due shall equal the sum of the recapture base and the product of (i) the incremental benefit and (ii) the phase-in fraction. Provided, however, that if the New York taxable income of the taxpayer is less than one hundred seven thousand six hundred fifty dollars, the supplemental tax shall equal the difference between the product of 5.80 percent and New York taxable income and the

tax table computation on the New York taxable income set forth in paragraph one of subsection (b) of this section, multiplied by a fraction, the numerator of which is the lesser of fifty thousand dollars or New York adjusted gross income minus one hundred seven thousand six hundred fifty dollars, and the denominator of which is fifty thousand dollars.

(3) For resident unmarried individuals, resident married individuals filing separate returns and resident estates and trusts:

(A) If New York adjusted gross income is greater than $107,650:

(i) the recapture base and incremental benefit shall be determined by New York taxable income as follows:

| Greater than | Not over | Recapture Base | Incremental Benefit |
|---|---|---|---|
| $80,650 | $215,400 | $0 | $568 |
| $215,400 | $1,077,550 | $568 | $2,261 |
| $1,077,550 | | $2,829 | $21,228 |

(ii) the applicable amount shall be determined by New York taxable income as follows:

| Greater than | Not over | Applicable Amount |
|---|---|---|
| $80,650 | $215,400 | New York adjusted gross income minus $107,650 |
| $215,400 | $1,077,550 | New York adjusted gross income minus $215,400 |
| $1,077,550 | | New York adjusted gross income minus $1,077,550 |

(iii) the phase-in fraction shall be a fraction, the numerator of which shall be the lesser of fifty thousand dollars or the applicable amount and the denominator of which shall be fifty thousand dollars; and

(iv) the supplemental tax due shall equal the sum of the recapture base and the product of (i) the incremental benefit and (ii) the phase-in fraction. Provided, however, that if the New York taxable income of the taxpayer is less than eighty thousand six hundred fifty dollars, the supplemental tax shall equal the difference between the product of 5.80 percent and New York taxable income and the tax table computation on the New York taxable income set forth in paragraph one of subsection (c) of this section, multiplied by a fraction, the numerator of which is the lesser of fifty thousand dollars or New York adjusted gross income minus one hundred seven thousand six hundred fifty dollars, and the denominator of which is fifty thousand dollars.

(e) Nonresidents and part-year residents. (1) General. There is hereby imposed for each taxable year on the taxable income which is derived

from sources in this state of every nonresident and part-year resident individual and trust and every nonresident estate a tax which shall be equal to the tax base multiplied by the New York source fraction.

(2) Tax base. The tax base is the tax computed under subsections (a) through (d) of this section, as the case may be, reduced by the credits permitted under subsections (b), (c), (d) and (m) of section six hundred six, as if such nonresident or part-year resident individual, estate or trust were a resident subject to the provisions of part II of this article.

(3) New York source fraction. The New York source fraction is a fraction the numerator of which is such individual's, estate's or trust's New York source income determined in accordance with part III of this article and the denominator of which is such individual's New York adjusted gross income determined in accordance with part II of this article or such estate's or trust's New York adjusted gross income determined under paragraph four of this subsection.

(4) New York adjusted gross income of an estate or trust. New York adjusted gross income of an estate or trust means its federal adjusted gross income, determined under subsection (e) of section sixty-seven of the internal revenue code, with the modifications provided in section six hundred eighteen, other than that portion of the modification provided in subsection three thereof which relates to section six hundred fifteen.

(f) Partners and partnerships. A partnership as such shall not be subject to tax under this article. Persons carrying on business as partners shall be liable for tax under this article only in their separate or individual capacities. As used in this article, the term "partnership" shall include, unless a different meaning is clearly required, a subchapter K limited liability company. The term "subchapter K limited liability company" shall mean a limited liability company classified as a partnership for federal income tax purposes. The term "limited liability company" means a domestic limited liability company or a foreign limited liability company, as defined in section one hundred two of the limited liability company law, a limited liability investment company formed pursuant to section five hundred seven of the banking law, or a limited liability trust company formed pursuant to section one hundred two-a of the banking law.

(g) Associations taxable as corporations. An association, trust or other unincorporated organization which is taxable as a corporation for federal income tax purposes shall not be subject to tax under this article.

(h) Exempt trusts and organizations. A trust or other unincorporated organization which by reason of its purposes or activities is exempt from federal income tax shall be exempt from tax under this article (regardless of whether subject to federal and state income tax on unrelated business taxable income).

(i) Cross references. For definitions of New York taxable income of:

(1) Resident individual, see section six hundred eleven.

(2) Resident estate or trust, see section six hundred eighteen.